

STATE OF NEW YORK

8291--B

2025-2026 Regular Sessions

IN ASSEMBLY

May 9, 2025

Introduced by M. of A. SIMON, LASHER, REYES -- read once and referred to the Committee on Judiciary -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the New York city civil court act, in relation to actions and proceedings seeking an abatement of rent based on violations of the housing maintenance code or the warranty of habitability and in relation to the number of housing judges assigned to certain actions

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision (a) of section 110 of the New York city civil
2 court act is amended by adding a new paragraph 10 to read as follows:

3 (10) Actions and proceedings seeking an abatement of rent based on
4 violations of the housing maintenance code, applicable housing stand-
5 ards, building code, health code or section two hundred thirty-five-b of
6 the real property law. Such abatements shall be granted beginning at the
7 time when the violation commenced until the violation is corrected. For
8 the purposes of this provision, "violation" shall mean any condition
9 that would give rise to a violation of the housing maintenance code,
10 applicable local and state housing standards, the building code, the
11 health code, or the multiple dwelling law.

12 § 2. Section 110 of the New York city civil court act is amended by
13 adding a new subdivision (r) to read as follows:

14 (r) In each county except the county of Richmond, at least two housing
15 judges shall be assigned to preside over actions initiated under subdi-
16 vision (h) or (i) of section 27-2115 of the New York city administrative
17 code by a tenant, a group of tenants, or the department of housing pres-
18 ervation and development of the city of New York. In the county of Rich-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 mond, there shall be at least one housing judge assigned to oversee such
2 actions at least two days a week.
3 § 3. This act shall take effect on the ninetieth day after it shall
4 have become a law.